



File No.: EXP202309821

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On December 12, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the FEDERACIÓN DE SERVICIOS A LA CIUDADANÍA DE COMISIONES OBRERAS (hereinafter, the respondent), through the Agreement that is transcribed:

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File No.: EXP202309821

Sanctioning Procedure No.: PS/000398/2023

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A., B.B.B., C.C.C., and D.D.D. (hereinafter, the complainants) filed complaints on June 8, 2023, before the Spanish Agency for Data Protection, on their own behalf and on behalf of other complainants.

All complaints are accumulated in the present procedure, as they concern the same subject matter and are directed against the FEDERACIÓN DE SERVICIOS A LA CIUDADANÍA DE COMISIONES OBRERAS with NIF G85699460 (hereinafter, FSC-CCOO). The reasons on which all the aforementioned complaints are based are as follows:

- They state that, on June 7, 2023, the Federation of Services to the Citizen of Comisiones Obreras, through the union section CCOO of IBERIA EXPRESS, with the intention of discrediting the USO union, which is currently negotiating the II Collective Agreement for TCPs (passenger cabin crew), published on the Internet a statement in which the minutes of the call and celebration of the voting held in 2015 and 2019 to approve the I Collective Agreement of TCPs are attached, which contain the personal data of the workers of the same that appear in the electoral roll for voting.

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- That said minutes along with their electoral rolls were exposed by the respondent on social media platforms such as Instagram, Telegram, and WhatsApp, thereby revealing private data of 333 workers of this company, such as name and two surnames, ID number, employee number, and job category.

- That the complainants appear in the aforementioned electoral roll, without any of them having given their consent to this disclosure.

- On June 8, the said information was removed after they were notified of the seriousness of this fact. Along with the complaints, the following is submitted:

- A copy of the aforementioned statement made by FSC-CCOO, in which two notarial minutes of requirement made at the request of the union association of cabin crew for better aviation (hereinafter, ATPAM) dated 07/28/2015 (call for a meeting to vote on the I Collective Agreement for TCPs) and 05/30/2019 (celebration of the voting of the same Agreement) are attached. In these, the electoral roll corresponding to the 333 workers who then made up the staff of the entity IBERIA EXPRESS is included as an annex.

- Various screenshots of the dissemination of the same through social media. Specifically, a screenshot and video from the wall and stories of the Instagram account belonging to “Ccooibs” as well as a screenshot of a message attaching the statement within the Telegram group called “Comisiones Obreras Iberia Express.”

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data

Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the respondent, so that it could proceed to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on July 17, 2023, as recorded in the acknowledgment of receipt in the file.

On August 4, 2023, a response letter was received by this Agency from ***POSITION of FSC-CCOO, Ms. E.E.E., in which the following is stated:

- That FSC-CCOO published the electoral roll with the list of workers that the company IBERIA EXPRESS had provided to it. On page 10 of the notarial minute of 05/30/19, it is indicated that said annex contains the list of the "current workers of the group of cabin crew."

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of cabin crew and flight attendants of Iberia Express included in the census provided by the company".

- This electoral census contained the names and surnames, ID numbers (DNI), job category, and employee numbers of these 333 workers.

- It maintains that FSC-CCOO is not responsible for the processing of the personal data disclosed, but rather the company to which the workers belong, IBERIA EXPRESS, in the following terms:

"Regarding the personal data provided by the company and that the public notary attached to the minutes, as well as the various documents or information that are processed in the workplaces, the Federation of Services to Citizenship of CCOO is not responsible for the processing of that data. It also cannot be responsible for the communications that the legal representation of the workers may make with resources outside the union, for example, on social media. We are dealing with processing and operations of labor data of the workers whose responsible party is the company."

- It appeals to the provisions of Article 4.7 of the General Data Protection Regulation, as well as to the Organic Law on Trade Union Freedom 11/85, and the Organic Law 3/2018 on the protection of personal data, as the legal basis for its lack of responsibility in the processing in the case of lists compiled with data that only the company possesses, which the union is unaware of, falling outside its capacity for control.

- It has contacted the Delegates of the Works Committee of IBERIA EXPRESS, and they reported the following:

1. The statement was published on June 7 by the committee delegates on WhatsApp, Telegram, and Instagram.

2. The statement, on WhatsApp and Telegram, due to human error, was attached to the Notarial Act of voting of the First Collective Agreement and contained the data of the workers provided by the company, which were attached with their complete ID numbers at the source. However, on Instagram, the statement never included the attached document.

3. When they became aware of the fact, the document was immediately deleted from WhatsApp, and on Telegram, it was replaced with the Act without the workers' data.

4. The reach of the publications was very limited, both in terms of the number of people who could access it and the exposure time. The estimated time it could have been available on Telegram was a maximum of 4 hours. The number of Telegram subscribers is a total of 24. On June 8, it was 28, 3 of whom did so on June 8 (these already saw the document without data) and one person coincidentally subscribed on June 7. The number of members in the WhatsApp group is 56 users, all of whom are employees of the company, and when it was deleted, the number of people who had seen it was 10.

5. On June 8, 2023, the union USO issued a statement directed to the staff of IBERIA EXPRESS, informing of the complaint filed with the Agency regarding the publication of this list of workers and inviting to report and providing resources for its execution.

6. On June 8, an affected person contacted one of the CCOO delegates to express their complaint and communicate the following: "They sent me a document, in which my name appears with my ID number, and I prefer that you give me explanations since I do not want to have to report you." They state that they are aware that this document is circulating in several chats where a direct complaint against our union section is being requested. In response, the union provided the appropriate explanations.

7. On June 9, an apology for what happened was published in the Telegram group. The apology was also sent individually to the people with whom contact was made.

Along with the allegations, the accused union FSC-CCOO attaches:

- The statement from FSC-CCOO dated June 9, 2023, apologizing for the publication and communicating that they have removed the publications.
- The statement from the USO union dated June 8 informing the workers of the publication of the census by FSC-CCOO and inviting them to report the facts.

THIRD: On August 7, 2023, the Data Protection Delegate of FSC-CCOO submitted a written request for correction on their own initiative, in order to modify their initial written statement of August 4, 2023, to remove all references made to the identity of a person affected by the publication of the list of workers, who requested explanations from the union on June 8, providing a new wording that is included in the second factual background of this agreement (Point 6).

FOURTH: On August 23, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

LEGAL GROUNDS

I

Competence

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In accordance with and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

The name and surname, and other employee data such as job category or employee number, are considered personal data whose processing is subject to the regime established in the GDPR, as well as its implementing provisions, in accordance with the provisions of Article 4.1, 2, and 7 of the GDPR, which states the following:

"Article 4 Definitions

For the purposes of this Regulation, the following shall be understood as:

- 1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;
- 2) 'processing': any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or

otherwise making available, alignment, combination, restriction, erasure, or destruction; (...)

7) 'data controller' or 'controller': the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be established by the law of the Union or of the Member States (...)"

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In the present case, in accordance with the provisions of Article 4.1 of the GDPR, it is established that the respondent has carried out processing of personal data since it has disseminated the list prepared by the company IBERIA EXPRESS, which included the name, surname, job category, and employee number of 333 workers who were registered in the census for the convened voting.

Consequently, this is the alleged responsible party to whom the present sanctioning procedure should be addressed in accordance with the provisions of Article 70.1 a) of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPPDD):

"Article 70. Responsible parties.

1.

The following are subject to the sanctioning regime established in Regulation (EU) 2016/679 and in this organic law: a) The controllers of the processing. b) The processors of the processing. c) The representatives of controllers or processors not established in the territory of the European Union. d) Certification bodies. e) Accredited entities supervising codes of conduct. (...)"

Article 4, paragraph 12 of the GDPR broadly defines "personal data security breaches" (hereinafter security breach) as "all breaches of security that lead to the accidental or unlawful destruction, loss, alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data."

In the present case, there is a personal data security breach under the circumstances mentioned above, categorized as a confidentiality breach; as a result of having made public the personal data of 333 workers of the company by publishing the electoral census of both calls on three social networks: Instagram, WhatsApp, and Telegram, as acknowledged by the Data Protection Delegate of FSC-CCOO in her writing.

III

Article 5.1.f) of the GDPR

Article 5.1.f) "Principles relating to processing" of the GDPR establishes that:

"1. Personal data shall be: (...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by applying appropriate technical or organizational measures ('integrity and confidentiality')."

In the present case, it is established that the respondent union has disseminated on social media the personal data of 333 individuals (name, surname, job category, and employee number) without anonymizing them, thus violating the principle of confidentiality of personal data regulated in Article 5.1.f) of the GDPR.

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IV

Typification and Qualification of the Infraction of Article 5.1.f) of the GDPR

In accordance with the evidence available in this initiation agreement of the sanctioning procedure,

and without prejudice to what may result from the instruction, it is considered that the known facts could constitute an infraction, attributable to the respondent, for violation of the Principle of Confidentiality provided for in Article 5.1.f) of the GDPR.

Specifically, if the reality of the reported facts is confirmed, the aforementioned infraction of Article 5.1.f) of the GDPR could imply the commission of the infractions typified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states (the underlining is ours):

"Infractions of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

For the purposes of the statute of limitations for infractions, Article 72 "Infractions considered very serious" of the LOPDGDD applies, which indicates (the underlining is ours):

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infractions are considered very serious and shall prescribe after three years, which imply a substantial violation of the articles mentioned therein, and in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

V

Sanction for the Infraction of Article 5.1.f) of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, and without prejudice to what may result from the instruction, it is appropriate to gradate the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

"2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infraction, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of damage and harm suffered;

b) the intentionality or negligence in the infraction;

c) any measures taken by the data controller or processor to mitigate the damage and harm suffered by the affected parties;

d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have applied under Articles 25 and 32;

e) any previous infraction committed by the data controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infraction and mitigate the possible adverse effects of the infraction;

g) the categories of personal data affected by the infraction;

h) the manner in which the supervisory authority became aware of the infraction, in particular whether the data controller or processor notified the infraction and, in that case, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, compliance with those measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42.

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infraction."

It is also considered appropriate to gradate the sanction to be imposed according to the criteria established in paragraph 2 of Article 76 "Sanctions and corrective measures" of the LOPDGDD: "In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also

be taken into account:

- a) The continued nature of the infraction.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infraction.
- d) The possibility that the conduct of the affected party may have induced the commission of the infraction.
- e) The existence of a merger by absorption after the commission of the infraction, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.

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- g) To appoint, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.

In this case, the following aggravating circumstances can be applied to this infringement:

First, the one provided for in Article 83.2.a) of the GDPR: "The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected data subjects and the level of damage and harm suffered."

Since the communication published a list containing 4 types of personal data of 333 employees of IBERIA EXPRESS (name and surname, ID number, job category, and employee number, which appeared visible without anonymization) on three social networks, considering that it was published from June 7 to June 8, the date on which the list was removed as indicated by the respondent, and one of the complainants.

All of this, without prejudice to what may arise from the instruction of this procedure to determine the extent of the infringement, in order to verify the accuracy of the statements made by FSC-COOO regarding the hours, content, and users who viewed the publications.

Second, the one set forth in Article 83.2.e) of the GDPR: "Any previous infringement committed by the controller or the processor," since it is recorded in the files of this Agency that the complained union was subject to a sanctioning procedure processed for the commission of the infringement typified in Article 5.1.f) of the GDPR (with number PS/00039/2022), ultimately being sanctioned with a fine of 3,000 euros by firm Resolution of 26-10-22.

Third, it is also necessary to consider in the grading of the fine the circumstance of Article 83.2.b) of the GDPR: "The intentionality or negligence in the infringement."

In fulfilling its legal obligations - for what is relevant here, the obligation to maintain confidentiality - the respondent must act with the diligence that the circumstances of the case require.

Regarding the degree of diligence that the controller is obliged to exercise, the judgment of the National Court, Administrative Litigation Chamber, of October 17, 2007 (rec. 63/2006) can be cited, which, although issued under the previous regulatory framework, is extrapolable to the matter that

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is of concern to us. The SAN, after indicating that entities whose activities involve continuous processing of customer and third-party data must observe an adequate level of diligence, specifies that "...the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the offender does not behave with the required diligence. In assessing the degree of diligence, the professionalism or lack thereof of the subject must be particularly weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard."

Applying this doctrine to the present case, the lack of diligence acknowledged by the respondent must

be classified as “serious,” since it should have been particularly scrupulous before deciding to publish on social media the annex of the minutes that contained the list with various personal data of the 333 workers (Article 83.2.b) GDPR). And finally, the circumstance provided for in Article 76.2.b) of the LOPDGDD in relation to Article 83.2.k) can be applied, given that the union in question is linked to the processing of personal data due to its activity.

The balance of the circumstances contemplated in Article 83.2.a), b), e), k) of the GDPR and in Article 76 of the LOGDPDD allows for the initial imposition of a fine of €5,000 (FIVE THOUSAND EUROS) regarding the infringement committed by violating the provisions established in Article 5.1.f) of the GDPR.

VI

Article 32 of the GDPR

Article 32 “Security of processing” of the GDPR establishes the following:

“1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others: a) the pseudonymization and encryption of personal data; b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services; c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident; d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.

In assessing the adequacy of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

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Adherence to a code of conduct approved pursuant to Article 40 or to a certification mechanism approved pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements established in paragraph 1 of this article.

The data controller and the data processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data in accordance with the instructions of the controller, unless required to do so by Union or Member State law.

It should be noted that the GDPR in the aforementioned provision does not establish a list of security measures applicable according to the data being processed, but rather states that the controller and the processor shall implement technical and organizational measures that are appropriate to the risk posed by the processing, taking into account the state of the art, the costs of implementation, the nature, scope, context, and purposes of the processing, as well as the risks of likelihood and severity for the rights and freedoms of the data subjects.

Furthermore, the security measures must be adequate and proportionate to the identified risk, indicating that the determination of the technical and organizational measures should be made taking into account: pseudonymization and encryption, the ability to ensure confidentiality, integrity, availability, and resilience, the ability to restore availability and access to data after an incident, verification process (which is not an audit), evaluation, and assessment of the effectiveness of the measures.

In any case, when assessing the adequacy of the level of security, particular attention shall be paid to the risks presented by the processing of data, such as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data that could cause physical, material, or immaterial damage.

In this same sense, Recital 83 of the GDPR states that “(83) In order to maintain security and prevent processing from infringing the provisions of this Regulation, the controller or the processor must assess the inherent risks of the processing and implement measures to mitigate them, such as encryption. These measures must ensure an adequate level of security, including confidentiality, taking into account the state of the art and the cost of their implementation in relation to the risks and the nature of the personal data to be protected. When assessing the risk in relation to data security, the risks arising from the processing of personal data must be taken into account, such as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data, particularly those that could cause physical, material, or immaterial damage.”

Consequently, in this case and at the time of publishing the list referred to in this procedure, it is evident that the claimed union had not provided reasonable security measures based on the possible estimated risks established by the aforementioned provision.

VII

Classification and qualification of the infringement of Article 32 of the GDPR

By virtue of what is indicated in the previous legal basis, in accordance with the evidence available in this initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the known facts could constitute an administrative infringement for violation of Article 32 of the GDPR, for failing to establish adequate security measures to prevent breaches such as the one that occurred in this case.

If this fact is confirmed, the aforementioned infringement of Article 32 of the GDPR could constitute an infringement classified under Article 83.4 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” provides as follows:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

5) the obligations of the controller and the processor pursuant to Articles 8, 11, 25 to 39, 42, and 43; (...)”

For the purposes of the limitation period for this infringement, Article 73 “Serious infringements” of the LOPDGDD indicates:

“According to what is established in Article 83.4 of Regulation (EU) 2016/679, the following infringements are considered serious and shall prescribe after two years, which involve a substantial violation of the articles mentioned therein and, in particular, the following: ...

f) The failure to adopt those technical and organizational measures that are appropriate to ensure an adequate level of security commensurate with the risk of processing, in the terms required by Article 32.1 of Regulation (EU) 2016/679.”

VIII

Sanction for the infringement of Article 32 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation agreement of the sanctioning procedure, and without prejudice to what results from the

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instruction, it is appropriate to adjust the sanction to be imposed in accordance with the criteria established in Article 83.2 of the GDPR and Article 76 of the LOPDGDD.

The balance of the circumstances contemplated in Article 83.2.a), b), e), k) of the GDPR and in Article 76 of the LOGDPDD allows for the initial setting of the fine at €2,000 (TWO THOUSAND EUROS) regarding the infringement committed by violating the provisions of Article 32 of the GDPR.

IX

Adoption of measures

If the infringement is confirmed, in accordance with the provisions of Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame."

By virtue of this, in the resolution that is adopted, the respondent may be required to notify this Agency within 3 months of the adoption of the following measures to adjust to the current regulations, without prejudice to others that may arise from the instruction of the procedure:

- To demonstrate within the cited period the effective application of the technical and organizational measures required in the various union sections and bodies that make up FSP-CCOO (not only in the union delegation of Iberia Express), having to review whether the personal data processing carried out in each of them has the appropriate security measures to ensure compliance with data protection regulations, and that as data controllers, they are in a position to demonstrate their compliance before the supervisory authorities and interested parties.

The type of procedures, mechanisms, or specific instruments that are necessary to implement them must be determined in each case by the data controller, who fully knows their organization and must decide based on proactive responsibility and a risk-based approach how to comply with the GDPR and the LOPDGDD.

The imposition of this measure would, if applicable, be compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

It is warned that failure to comply with the possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning procedures.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against the FEDERACIÓN DE SERVICIOS A LA CIUDADANÍA DE COMISIONES OBRERAS, with NIF G85699460, C/ Jorge Juan, 6

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for the alleged infringement of Article 5.1.f) of the GDPR, classified under Article 83.5 of the same legal body, as well as for the alleged infringement of Article 32 of the GDPR, classified under Article 83.4 of the same legal body.

SECOND: TO APPOINT F.F.F. as the instructor and G.G.G. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, without prejudice to what results from the instruction:

- For the alleged infringement of Article 5.1.f) of the GDPR, classified under Article 83.5 of said regulation, an administrative fine of 5,000 € (FIVE THOUSAND EUROS).
- For the alleged infringement of Article 32 of the GDPR, classified under Article 83.4 of said regulation, an administrative fine of 2,000 € (TWO THOUSAND EUROS).

FIFTH: TO NOTIFY this agreement to the FEDERACIÓN DE SERVICIOS A LA CIUDADANÍA DE COMISIONES OBRERAS, with NIF G85699460, granting it a hearing period of ten working days to formulate allegations and present any evidence it deems appropriate. In its written allegations, it must

provide its NIF and the file number that appears in the heading of this document.

If no allegations are made to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 5,600 € (FIVE THOUSAND SIX HUNDRED EUROS), resolving the procedure with the imposition of this sanction.

Similarly, it may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 5,600 € (FIVE THOUSAND SIX HUNDRED EUROS), and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

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The reduction for the voluntary payment of the sanction is cumulative with the one that corresponds to apply for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made evident within the period granted to submit allegations regarding the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be established at €4,200 (FOUR THOUSAND TWO HUNDRED EUROS).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or appeal in the administrative route against the sanction.

In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above (€5,600 or €4,200), you must make it effective by depositing it into account No. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

Furthermore, you must send the proof of deposit to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGD.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be carried out exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address before this Agency to receive the notice of availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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SECOND: On January 10, 2024, the respondent has proceeded to pay the sanction in the amount of €4,200 making use of the two reductions provided in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or appeal in the administrative route against the sanction and the acknowledgment of responsibility in relation to the facts referred to in the Initiation Agreement.

FOURTH: In the previously transcribed Initiation Agreement, it was indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is appropriate.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction."

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2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the latter has been justified as inappropriate, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except with respect to the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which will be cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation.

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202309821, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER the FEDERATION OF SERVICES TO CITIZENS OF COMISIONES OBRERAS to notify the Agency within 3 months from the date this resolution becomes firm and enforceable, of the adoption of the measures described in the legal grounds of the Agreement of initiation transcribed in this resolution.

THIRD: TO NOTIFY this resolution to the FEDERATION OF SERVICES TO CITIZENS OF COMISIONES OBRERAS.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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